

Legal opinion

A. W might have used effective standard business terms acc. to §§ 305 et seqq. BGB.

I. This requires the existence of standard business terms.

Standard business terms are all contract terms that are pre-formulated for more than two contracts which one party to the contract (the user) presents to the other party when the contract is concluded acc. to **§ 305 I 1 BGB**.

1. O wants to have his car washed at W's car wash. This constitutes a work contract under § 631 BGB. The clause in question could modify this contract and therefore, qualifies as a contractual term.
2. W has previously written the terms on a sign in front of the car wash. O had no influence on the clauses.
Thus, the term is pre-formulated.
3. The sign was at least used three times with O and probably even more often with other customers.
Thus, the term is intended for more than two contracts.
4. W did not explicitly tell O about the terms. However, W provided a sign with the terms in front of the car wash.
W is considered the user.
5. The term is regarded as a standard business term.

II. The standard business terms must have been incorporated in the contract.

1. W must have referenced the terms acc. to **§ 305 II No. 1 BGB**.
 - a. W made no explicit reference to the terms towards O acc. to **§ 305 II No. 1 Alt. 1 BGB**.
 - b. However, W could have provided a clearly visible notice acc. to **§ 305 II No. 1 Alt. 2 BGB** at a place where the contract is entered into, if making explicit reference was only possible with disproportionate difficulty.
 - i. The car wash operates on a self-service basis. It is not reasonable for W to address each customer personally. An explicit reference would be possible only with disproportionate difficulty.
 - ii. W put a sign in front of the car wash, where customers decide to proceed. It was clearly readable and placed at the place where the contract is concluded.
 - iii. W provided a clearly visible notice acc. to **§ 305 II No. 1 Alt. 2 BGB**.
 - c. W referenced the terms effectively.
2. O must have had an opportunity to take notice in an acceptable manner acc. to **§ 305 II No. 2 BGB**.
O does not pay attention to the sign. Still, he had the opportunity to stop and read it.
Thus, the requirement is fulfilled

3. O must have agreed to the term acc. to **§ 305 II BGB**.
O did not explicitly agree to the term. However, O drove into the car wash. This behavior indicates implied consent to the clause
4. There is no evidence that W and O entered into a personal agreement acc. to **§ 305b BGB**.
5. The clause in question relates to the liability for paint damage in the case of improper use by the customer. This is not unlikely to be expected acc. to **§ 305c I BGB**.
6. The clause has been effectively incorporated into the contract.

III. The incorporated standard business term must pass the content control acc. to **§§ 307 et seqq. BGB**.

1. The opening of the content control acc. to **§ 307 III BGB** is given (case note).
2. The clause could violate **§ 309 BGB**. § 309 BGB contains prohibited clauses without the possibility of valuation.
 - a. The clause only excludes liability for paint damages and not for injury to life, body or health. Thus, there is no violation of **§ 309 No. 7a) BGB**.
 - b. The clause limits the exclusion to damages caused by the customer's failure to operate the car wash properly. It does not exclude liability for W's gross negligence. Thus, there is no violation of **§ 309 No. 7b) BGB**.
 - c. The clause does not violate **§ 309 BGB**.
3. No case group in § 308 BGB is applicable.
4. The clause could be ineffective acc. to **§ 307 II, I BGB**, because it could unreasonably disadvantage O.
 - a. No case group acc. to **§ 307 II BGB** is applicable.
 - b. **§ 307 I BGB** could be applicable.

The customer expects that their car will be washed without any damage. In general, car wash owners are likely to have better insurance coverage, which helps to protect customers who may not be experienced in using self-service car washes. But the allocation of risk in question is appropriate and standard in such a context. Damages exclusively caused by the customer's failure to properly operate the car wash should not be the car wash owner's responsibility.

The clause does not unreasonably disadvantage O.

5. The incorporated standard business term passes the content control acc. to **§§ 307 et seqq. BGB**.

B. W has used effective standard business terms acc. to §§ 305 et seqq. BGB.